Module overview and learning objectives:

Now that you understand the laws, legal definitions, and effects of sexual harassment, this module will help you recognize the nuanced aspects of sexual harassment in the workplace. The module will cover the three types of behavior that may constitute sexual harassment and focus on two forms of sexual harassment: Quid Pro Quo and hostile environment. Additionally, this module will guide you in identifying the complainant or alleged perpetrator of sexual harassment in the workplace.

Learning Objectives:

Recognize the subtle types of behaviors or acts that may constitute sexual harassment and the forms they take within a workplace.

- Explain how harmless intent is irrelevant to lawfulness when behaviors or acts are unwelcome.
- Identify who can be a complainant or alleged perpetrator of workplace sexual harassment.

Three types of behaviors which can get recognized as sexual harassment:

Recognition of specific inappropriate behaviors or acts is vital for preventing sexual harassment in the workplace. Key to this is understanding that verbal, non-verbal, and physical acts or behaviors can all potentially constitute sexual harassment.

Verbal acts include more than direct propositions, humiliation, insults, or threats of a sexual nature.

They also include sexual innuendos, suggestive jokes, unwelcome advances, requests for sexual favors, and inappropriate remarks regarding sex, gender, or sexual orientation.

Non-verbal behaviors include personal acts like whistling, leering or suggestive looks, sounds and gestures. They also include any personal or social display of derogatory or offensive printed and digital materials, including screen savers, calendars, cartoons, graffiti and ring tones.

Physical acts of sexual harassment include any intentional touching of the body or invasion of personal space, either by brushing, patting, pinching or kissing, as well as inappropriate displays of the body or coerced acts of a sexual nature.

Determining unwelcome behavior:

While you or others may consider an interaction “harmless”, an alleged perpetrator’s intent is not relevant in determining if a behavior or act is considered sexual harassment. Because sexual harassment is based on the impact to the complainant or perception of the complainant. Behavior crosses the line from acceptable workplace social interaction to sexual harassment when it is both:

- Unwelcome, meaning unsolicited or non-consensual, and
- Sexual in nature.

A hostile environment may also be created even though behavior is not directed toward any specific person. Therefore, it is best to avoid behaviors which could be reasonably misinterpreted as offensive, unwelcome or sexual in nature.

Quid Pro Quo sexual harassment:

To begin recognizing sexual harassment in the workplace when it occurs, it’s also important to understand the two general forms workplace sexual harassment may take.

The first form is Quid Pro Quo or literally “this for that.” Applied to sexual harassment, it means:

- Seeking sexual engagement or making advances under an implied or explicit promise of preferential treatment in employment or teamwork, including promises of promotion or higher pay, Or
- An implied or explicit threat of detrimental retaliatory action to present or future employment status or working conditions if sexual advances are not accepted.

Quid Pro Quo harassment occurs most often, but not always, in the matrix of power between a manager and a subordinate, making the victim feel coerced and vulnerable. Whether implied by the working relationship or explicitly stated, this type of threat or promise, when made of a sexual nature, qualifies as sexual harassment at workplace.

Hostile work Environment:

Supriya is a software engineer in a medium-sized tech company. Though she works from home, her manager, Akash, has been consistently targeting her with excessive criticism and micromanagement for the past few months.

He constantly monitors every move Supriya makes, frequently checking on her work progress, questioning her decisions, and reassigning tasks that she has already completed. He has also started making sexually colored remarks.

This behavior has significantly undermined her confidence and has started to hinder her productivity. She had to go to the counselor as she was so stressed at work.
What do you think about this situation?
Do you think Supriya is facing a hostile work environment under the POSH Act?

The scenario depicts a hostile work environment for Supriya, characterized by sexually colored remarks, constant criticism, micromanagement, and intrusive monitoring that extends beyond work hours. This treatment separates Supriya from her colleagues, causing isolation, mental agony due to indecent remarks, low job satisfaction, and reduced productivity.

A hostile work environment signifies the second form of sexual harassment after Quid Pro Quo.

Let's understand what constitutes a hostile work environment.

A hostile work environment under the POSH Act refers to any unwelcome conduct (sexual or non-sexual) that could create an intimidating, offensive, or oppressive atmosphere at the workplace.

Hostile work environment includes:

- Persistent unwelcome sexual advances or requests for sexual favors,
- Derogatory comments, jokes, or remarks,
- Displaying explicit images or materials,
- Repeated and unwanted physical contact or gestures, and
- Any behavior that creates an environment of fear, humiliation, or distress for the victim, affecting their ability to work effectively

Companies must follow the legal framework set up under the POSH Act to address and prevent hostile work environments.
The act mandates companies to have an Internal Complaints Committee to investigate complaints and recommend action against the respondent.
Sexual harassment has severely harmful effects on complainants, negatively impacting their mental and physical health.

Effective solutions include offering paid leave for three months if the complainant reports to the respondent and changing their reporting line. Counseling services should be recommended if they struggle with mental trauma.

Identifying complainants and alleged perpetrators:

The Act covers all employees, including contractors, vendors, job applicants, and even visitors on the premises. Though the POSH law specifically protects women in the workplace, most company policies cover all employees regardless of gender identity or sexual orientation, including same-sex harassment. Therefore, a complainant of sexual harassment could be anyone in the company.

Further, if the complainant is a woman, she will file a sexual harassment complaint in the Internal Complaints Committee under the POSH law. If the complainant is a man or of any gender, he will file a complaint with the HR committee.

Since sexual harassment may be indirect, as well as direct, colleagues who witness sexual harassment in the workplace may also face the challenge of a hostile environment. Thus, anyone affected by unwelcome and offensive behavior can be a complainant, including employees, trainees, contractors, or customers.

An alleged perpetrator could be anyone in a company, regardless of gender, including superiors, colleagues, subordinates, or clients. Behavior may still be unlawful even if someone is unaware that their behavior is offensive and had a detrimental effect. It's vital to remember it is not someone's intent that may identify them as an alleged perpetrator, but the subjective experience of another that their behavior is both unwelcome and of a sexual nature.

Module 3: Key Points:

Key information to remember for recognizing sexual harassment:

- Sexually inappropriate behaviors or acts can be verbal, non-verbal, or physical in nature.
- The two forms of sexual harassment are Quid Pro Quo and hostile environment.
- The company's policies may be gender-neutral. A complainant or alleged perpetrator of sexual harassment could be anyone, regardless of gender identity or sexual orientation, and is not limited to exchanges between the opposite sex.

- An alleged perpetrator's intent does not determine sexual harassment. It is determined only when the complainant or witness perceives the behavior or act as both unwanted and sexual in nature.